

25NWCV04582 25NWCV04582

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Case Number: 25NWCV04582 Hearing Date: August 24, 2026 Dept: P

KRYSTAL HAMORI, ET AL. v.

CALIFORNIA HIGHWAY PATROL, ET AL.

CASE NO.: 25NWCV04582

HEARING: 08/24/2026 @ 9:30 AM

#7

TENTATIVE ORDER

I.

Defendant Iris Salmeron's motion for a discovery stay is GRANTED. Discovery is STAYED pending the completion of criminal proceedings in Los Angeles Superior Court Case Nos. 26BFCF00140 01 and 26BFCF00140-02).

II.

Defendant State of California, acting by and through California Highway Patrol's motion for a discovery stay is MOOT.

Moving party to give notice.

There are two motions on calendar: (1) Defendant and Cross-Defendant State of California, acting by and through California Highway Patrol (CHP) moves for a stay of discovery and (2) Defendant Iris Salmeron moves for a stay of discovery.

Background

This is a wrongful death action. On December 29, 2025, Plaintiffs Krystal Hamori; Michael Hamori; The Estate of Juliana Casidy Hamori, by and through her Successors in Interest, Krystal Hamori and Michael Hamori; Angela Reed; George Del Campo; and the Estate of Armand Del Campo, by and through his Successors in Interest, Angela Reed and George Del Campo (Hamori and Campo Plaintiffs) filed this wrongful death action arising out of the deaths of Juliana Casidy Hamori and Armand Del Campo (collectively, Decedents) against California Highway Patrol, State of California acting by and through the California Highway Patrol, Angelo Rodriguez, Iris Salmeron, and Does 1 through 50 (collectively, Defendants) in case no. 25NWCV04582. The complaint alleges that on July 20, 2025, Juliana Casidy Hamori was driving a vehicle going southbound on Interstate 605 with Armand Del Campo among three passengers in the vehicle. (Complaint, ¶¶ 1, 17.) Her vehicle was initially struck by an on-duty California Highway Patrol officer, Defendant Rodriguez, which disabled the vehicle. (Complaint, ¶¶ 19-22.) Shortly after, her vehicle was struck by a second driver, Defendant Salmeron, causing her vehicle to burst into flames, killing all occupants. (Complaint, ¶ 26.) The complaint asserts two causes of action: (1) Governmental Employee Vehicular (Wrongful Death) and (2) Negligence (Wrongful Death).

On December 30, 2025, Plaintiffs John Skocilic, Jr.; Bridget Wright; and the Estate of Samantha Skocilic, by and through her successors in interest, John Skocilic, Jr., and Bridget Wright filed a wrongful death action against Defendants arising out of the death of Samantha Skocilic, a passenger in Juliana Casidy Hamori's vehicle on July 20, 2025. The complaint in case no. 25NWCV04606 asserts two causes of action: Governmental Employee Vehicular (Wrongful Death) and (2) Negligence (Wrongful Death).

On December 30, 2025, Amanda Partridge, individually; and the Estate of Jordan Skye Partridge, by and through her successor in interest, Amanda Partridge (Partridge Plaintiffs) filed a wrongful death action against Defendants California Highway Patrol, State of California acting by and through the California Highway Patrol, Angelo Rodriguez, Iris Salmeron, Craig Webb (a nominal defendant) and Does 1 through 50 arising out of the death of Jordan Skye Partridge, a passenger in Juliana Casidy Hamori's vehicle on July 20, 2025. The complaint in case no. 25NWCV04608 asserts three causes of action: Governmental Employee Vehicular (Wrongful Death), (2) Negligence (Wrongful Death), and Negligent Infliction of Emotional Distress.

On March 25, 2026, Plaintiffs Andrea Vega Alvarez (Alvarez) and Carlos Fabian Lopez (Lopez) filed an action against Defendants in case no. 26NWCV01062. Plaintiffs Alvarez was a seat belted passenger in Defendant Salmeron's vehicle and Lopez is and was the husband of Alvarez at the time of the collisions. (Complaint, ¶ 1.) Plaintiffs Alvarez and Lopez assert five causes of action: (1) Governmental Employee Vehicular Negligence; (2) Negligent (Including Gross Negligent) Hiring, Training, Supervision, or Oversight and/or Retention; (3) Dangerous Condition of Public Property; (4) Negligence; and (5) Loss of Consortium – Spousal.

On April 7, 2026, Defendant and Cross-Complainant Salmeron filed a cross-complaint against California Highway Patrol, State of California acting by and through the California Highway Patrol, Angelo Rodriguez, and Does 1 through 10. On May 4, 2026, Salmeron filed an amended cross-complaint. The cross-complaint asserts two causes of action: (1) motor vehicle and (2) general negligence.

On June 5, 2026, the Court granted the parties' stipulation to consolidate case nos. 25NWCV04582, 25NWCV04606, 25NWCV04608, and 26NWCV01062.

Legal Standard

Pursuant to Code of Civil Procedure section 2019.020, "[o]n motion and for good cause shown, the court may establish the sequence and timing of discovery for the convenience of parties and witnesses and in the interests of justice."

"The determination whether to stay an action pending resolution of criminal proceedings should be made in light of the particular circumstances and competing interests involved. [Citation.] The decisionmaker should consider the extent to which Fifth Amendment rights are implicated. In addition, factors to be considered include: (1) the interest of the party opposing the stay in proceeding expeditiously with the action, and the potential prejudice to the party opposing the stay of a delay; (2) the burden which any particular aspect of the proceedings may impose on the party seeking the stay; (3) the convenience to the court in management of its cases and the efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending cases. [Citation.] While the privilege against self-incrimination is a factor to be considered, the issue of a stay itself does not implicate constitutional

issues.” (People ex rel. Harris v. Rizzo (2013) 214 Cal.App.4th 921, 952.)

Discussion

CHP moves for a stay of discovery until the criminal proceedings against Defendant Rodriguez and Defendant Iris Salmeron (Los Angeles Superior Court Case Nos. 26BFCF00140 01 and 26BFCF00140-02) are completed. Defendant Salmeron moves for the same. The Court will address the motions brought by CHP and Salmeron (Moving Defendants) concurrently as they involve substantively similar arguments. The Court will note any differences between the motions as needed.

Partridge Plaintiffs and Hamori and Campo Plaintiffs file oppositions. Alvarez and Lopez join in Hamori and Campo Plaintiffs’ oppositions (collectively, Plaintiffs).

Moving Defendants argue that a stay of discovery is warranted in the interests of justice. Counsels for Moving Defendants explain that on March 16, 2026, Los Angeles County District Attorney filed murder and other charges against Defendants Rodriguez and Salmeron. (Shin Decl., ¶ 5; Dean Decl., ¶ 3.) Counsel for CHP met prosecutors in the Los Angeles District Attorney’s office who expressed a preference that CHP maintains the confidentiality of investigations records while the criminal proceedings are ongoing. (Shin Decl., ¶ 9; Dean Decl., ¶ 4.)

Moving Defendants argue that the public interest weighs in favor of a stay. Moving Defendants also argue that the burden on Plaintiffs does not outweigh the other factors because Plaintiffs have an interest in ensuring that the investigation and prosecution of Rodriguez and Salmeron proceed thoroughly, accurately, and efficiently.

Moving Defendants next argue that the convenience of the Court and efficient use of judicial resources weigh in favor of a stay. Moving Defendants argue that a stay of discovery would alleviate the need for this Court to decide privilege issues during civil discovery. It is expected that Rodriguez and Salmeron will exercise their Fifth Amendment rights to avoid giving deposition testimony or responding to written discovery in this matter while the criminal action is pending. (Dean Decl., ¶ 5.) Moving Defendants argue that the criminal investigation can be used as a roadmap to streamline discovery in the civil action.

Further, Moving Defendants contend that even without a stay, there will be delays in discovery because Rodriguez and Salmeron will attempt to exercise their fifth amendment rights.

In opposition, Plaintiffs argue that a blanket stay on discovery is not warranted. Instead, Plaintiffs argue for a tailored approach. Plaintiffs prepared a protective order to implement safeguards. Plaintiffs cite to *Avant! Corp. v. Superior Court* [*Avant!*] (2000) 79 Cal.App.4th 876, 882, 885 and *Fuller v. Superior Court* (2001) 87 Cal.App.4th 299, 306–09 to show that California Courts emphasize that parallel proceedings are managed through practical accommodations, not categorical freezes. As argued in reply, Plaintiffs' reliance on *Avant!* and *Fuller* are not persuasive here.

In *Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 690, the Fourth Appellate District held that “[w]here...a defendant's silence is constitutionally guaranteed, the court should weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible. An order staying discovery until expiration of the criminal statute of limitations would allow real parties to prepare their lawsuit while alleviating petitioners' difficult choice between defending either the civil or criminal case.” The Court of Appeal noted that the rationale of this remedy “is in accord with federal practice where it has been consistently held that when both civil and criminal proceedings arise out of the same or related transactions, an objecting party is generally entitled to a stay of discovery in the civil action until disposition of the criminal matter.” (*Ibid.*, citations omitted [“The rationale of the federal cases is based on Fifth Amendment principles as well as the inherent unfairness of compelling disclosure of a criminal defendant's evidence and defenses before trial. Under these circumstances, the prosecution should not be able to obtain, through the medium of the civil proceedings, information to which it was not entitled under the criminal discovery rules.”].) The Court of Appeal further noted, “[t]o allow the prosecutors to monitor the civil proceedings hoping to obtain incriminating testimony from petitioners through civil discovery would not only undermine the Fifth Amendment privilege but would also violate concepts of fundamental fairness.” (*Ibid.*)

In *Avant!*, the Court of Appeal considered the remedy afforded in *Pacers, Inc.* and distinguished it, noting *Pacers* and

the federal cases “involved claims of individual defendants, not of a corporate defendant, as here.” (Avant! Corp., *supra*, 79 Cal.App.4th at p. 883.) In Fuller, the individual defendants sought to stay depositions “during discovery in civil litigation to avoid exposure to criminal prosecution.” (Fuller, *supra*, 87 Cal.App.4th at p. 304–05.) Unlike the defendants in Fuller, here, Rodriguez and Salmeron have already been criminal charged. (Shin Decl., ¶ 6.)

Plaintiffs additionally raise concerns that a delay caused by a stay of discovery may cause witnesses’ memories to fade or lost records. Plaintiffs further argue that the civil discovery rules provide remedies for the issues here such as in camera review, protective orders, and motions.

In reply, Salmeron emphasizes that proceeding with discovery forces her to choose between invoking the Fifth Amendment and risking adverse consequences in this civil action or waiving constitutional protections in an effort to defend this lawsuit. The Court notes that this concern is correct—a defendant may not assert privilege as to an item of evidence to avoid producing it during discovery, then waive that privilege to produce the evidence at trial. (See, e.g., *A & M Records, Inc. v. Heilman* (1977) 75 Cal.App.3d 554, 566 [upholding that the intention of the Discovery Act “compels the court to prevent a litigant claiming his constitutional privilege against self-incrimination in discovery and then waiving the privilege and testifying at trial. Such a strategy subjects the opposing party to unwarranted surprise. A litigant cannot be permitted to blow hot and cold in this manner.”].)

Here, the Court finds that a stay is warranted to protect Salmeron’s constitutional rights. While the Court finds Plaintiffs’ arguments well-taken regarding witness memories and possible delays in the criminal proceedings, “protecting a party’s constitutional rights is paramount.” (Pacers, *supra*, 162 Cal.App.3d at p. 690.) Plaintiffs’ requests for protective orders or decisions based on individual discovery requests and assertions of privilege do not resolve the issue of putting Salmeron in a position of having the “difficult choice between defending either the civil or criminal case.” (*Ibid.*)

Moreover, the Court notes that because this ruling weighs upon Salmeron’s constitutional rights, it does not grant this ruling based on CHP’s motion for a stay. However, the effect of granting Salmeron’s motion is a stay of all discovery, which applies to CHP as well.

Accordingly, Defendant Salmeron's motion for a discovery stay is GRANTED. Discovery is STAYED pending the completion of criminal proceedings in Los Angeles Superior Court Case Nos. 26BFCF00140 01 and 26BFCF00140-02).

CHP's motion for a discovery stay is MOOT.